

T. 698/94; T. 278/00, OJ 2003, 546; T. 70/02; T. 963/02; T. 897/03; T. 763/04; T. 316/05; T. 1366/05; T. 1612/07; T. 1870/07; T. 1997/08 and T. 2366/11).

b) Deficient reasoning insufficient for the purposes of Rule 111(2) EPC

In T. 70/02 the board found that simply stating "no convincing arguments have been found in your letter" in response to letters in which the objections put forward were exhaustively discussed by the applicant, did not comply with R. 68(2) EPC 1973. Whilst reasoning did not mean that all the arguments submitted should be dealt with in detail, it was a general principle of good faith and fair proceedings that reasoned decisions should contain at least some reasoning on crucial points of dispute, in order to give the party concerned a fair idea of why its submissions were not considered convincing and to enable it to base its grounds of appeal on relevant issues. In T. 1291/13 the decision did not deal with crucial (and, on the face of it, plausible) counter-arguments presented by the applicant. The board referred to T. 70/02 and held that the decision must contain at least some reasoning on crucial points of dispute, i.e. deal with at least the main counter-arguments presented by the applicant to be sufficiently reasoned.

In T. 1366/05 the board held that the mere summary of a party's submissions does not constitute sufficient reasoning.

In T. 534/08 it was not clear from the wording of the contested written decision why the opposition division had come to its conclusion, whether or not it had adopted the respondent's arguments entirely, or whether or not it had had its own objections. This too was regarded by the board as being insufficient.

In T. 548/08 the board found that unsubstantiated assertions were made by the examining division. Instead of a logical chain of reasoning as to why e.g. the claims were not supported by the description, the entire burden of analysis and argument was put on the applicant and the board, who were expected to work out for himself the true nature of the examining division's objections.

In T. 405/12 the board held that a decision is not reasoned if it is not unambiguously clear from it (possibly after consulting other parts of the file) which request(s) – including any items such as claims, description pages and drawings – it is based on.

In T. 278/00 (OJ 2003, 546) the board decided that it was not up to it or the appellant to speculate as to what the intended meaning of unintelligible and therefore deficient reasoning might be. The reasoning of a decision under appeal had to be taken as it stood. The board had to be in a position to assess on the basis of the reasoning given in the decision under appeal whether the conclusion drawn by the department of first instance was justified or not. That requirement was not satisfied when the board was unable to decide which of the various inconsistent findings indicated in and justifying the decision under appeal were correct and which were false (see also T. 316/05).

In T. 655/13 the board held that in order for the examining division to make its reasoning on the basis of a pertinent prior-art document in a non-official EPO language

comprehensible to the board, it must provide the translation used in the examination proceedings of at least the relevant sections of the document (or even of the whole document, if this is necessary for its overall understanding) into an official language of the EPO. Otherwise, the board is unable to examine the reasons for the decision, and in certain cases even whether the decision was justified or not, which amounts to a violation of the legal requirement for reasoned decisions under R. 111(2) EPC.

In T. 1787/16 the board decided that there was only very limited room for using a language other than the language of the proceedings in the decision, namely only in so far as answering questions of fact or evidence and points of law relevant to the proceedings demanded it. According to Art. 125 EPC, in the absence of procedural provisions in the EPC, the principles of procedural law generally recognised in the contracting states of the European Patent Organisation were to be taken into account. This applied in particular to the general legal principle of a fair trial, which was also enshrined in, for example, Art. 6(1) ECHR and which served as a general guiding standard for the organisation of proceedings. It also included a requirement to draft the decision in such a way that it could be understood by a party with a command of the language of the proceedings.

In T. 1840/13 the board held that including additional reasoning into the proceedings, to which the applicant had not had the opportunity to react constituted a violation of his right to be heard. Furthermore, these new arguments still did not provide a comprehensible reasoning according to the board, resulting in a substantial procedural violation.

In T. 1929/12 the board found that a decision was fundamentally flawed if it did not indicate the features or combination of features in the claims in question that were considered to extend beyond the content of the originally filed application (Art. 123(2) EPC). However, it decided against remitting the case in hand because the opposition division would probably take the same decision again, albeit with better reasoning.

In T. 1351/12 the examining division had not appreciated that the main request was different from the auxiliary request. The reasoning of the examining division or parts of it might have been envisaged to also apply to the main request, however it could not be inferred from the decision whether this was the case and, if so, which arguments would apply correspondingly.

In T. 1029/16 the Examining Division's reasoning of the decision in respect of the main request seemed to be copied from the summons to oral proceedings. The only three paragraphs concerning the main request which had not been directly copied appeared to be a paraphrased version of what had been said in the summons. In its written submissions, the applicant had already replied to the arguments raised in the summons. Furthermore, it was clear that the decision had very little in common with what had actually been discussed at the oral proceedings. The board held that while the reasons of a decision may, in the interest of procedural economy, refer in appropriate cases to previous communications, it must be clear from the decision which considerations led the Division to its conclusions. The fact that preliminary opinions or arguments which may be applicable to these requests have been expressed in previous communications or in the minutes of oral proceedings cannot replace reasons in the decision itself. Hence, the Examining

Division had failed to provide adequate reasoning. This was also a substantial procedural violation.

In T 899/17 the board held that the reasons for the failure of auxiliary requests which were skipped in the discussion during the oral proceedings before the opposition division in favour of more promising lower-ranking auxiliary requests and which were explicitly not withdrawn by the patent-proprietor had to be set out in the written decision.

c) No reasons for decision

In T 493/88 (OJ 1991, 380) the board held that a decision of an opposition division rejecting an opposition had not been correctly reasoned within the meaning of R 68(2), first sentence, EPC 1973 if, after giving the reasons why it, unlike the opponent, considered the subject-matter of the patent to be new, it failed to state the reasons why it considered that the subject-matter also involved an inventive step.

In T 1411/07 the board found that the opposition division's failure to make any reference to its thinking on the factual and legal circumstances of the case, and the total absence of a logical train of thought, had left both the parties and the board in the dark as to what considerations had led it to the conclude that the opposition was to be regarded as adequately substantiated. The board was thus of the view that the contested decision was not reasoned within the meaning of R 68(2) EPC 1973 (see also T 2245/12).

In T 1553/07 the opposition division had not explained why it believed that there had been public prior use and how it had arrived at this conclusion. Nor was it apparent what its considerations had been in arriving at its conclusion regarding novelty. The board was thus precluded from reviewing whether or not its conclusions were justified and so ruled that the decision had not been reasoned within the meaning of R 68(2), first sentence, EPC 1973.

Where there was no explanation of how the examining division had arrived at its conclusion that the claimed process was an obvious juxtaposition of certain documents, this was held insufficient (T 292/90).

In T 708/00 (OJ 2004, 160) the board found that neither the communications nor the examining division's decision went beyond a list of the features appearing or lacking in the claimed inventions, which was obviously not an appropriate way to substantiate the lack of unity of invention. Since lack of unity was a central issue in these proceedings and an important reason for refusing the application, this lack of substantiation had to be regarded as a substantial procedural violation.

In T 153/89 the examining division had given no reasons for finding in its decision that the subject-matter of the dependent claims was not inventive. The board of appeal took the view that the perfunctory statement in the contested decision did not permit the board to judge whether this issue had been sufficiently investigated, or investigated at all. The examining division's decision on such grounds did not amount to a reasoned decision.

In T. 698/94 neither the minutes of the oral proceedings before the opposition division nor the appealed decision itself contained the slightest hint at the arguments brought forward by the parties. Nor did the reasons address the decisions of the Enlarged Board of Appeal that had been cited in the summary of facts and submissions. It was impossible for the parties to the proceedings to see how the opposition division had arrived at its conclusion of lack of novelty. The losing party was deprived of its legitimate right to challenge the reasoning on which the decision was based, which was the very purpose of proceedings before the boards of appeal (see G 9/91, OJ 1993, 408). See also T. 135/96, T. 652/97.

In T. 1747/06 the board, distinguishing the situation before it from that in T. 856/91, where it had been decided that even incomplete and deficient reasoning still amounted to reasoning for the purposes of R. 68(2) EPC 1973, found that no reasons at all had been given since it was unclear whether or not any of the documents cited had been considered by the opposition division in arriving at their decision and proper reasoning for the conclusion drawn was lacking. Further, it was unclear whether the statements made in the "Grounds for decision" actually reflected the view of the opposition division or merely that of, e.g., the patent proprietor (see also T. 1366/05).

In T. 1724/10 the board held that the juxtaposition of seemingly contradictory conclusions (e.g. acknowledgement of technical differences but no possibility to define a technical problem), presented in the contested decision as apodictically evident and without any factual support, does not constitute a "reasoned decision" within the meaning of R. 111(2) EPC.

In T. 1713/20, the examining division's reasoning with regard to a lack of inventive step was incomplete. Only individual points of the problem-solution approach were addressed in isolation and it was not clear in relation to which claims or claimed subject-matter the respective arguments or statements were made. There was no logical chain of argumentation concerning the assessment of inventive step of the claimed subject-matter. It was in particular not clear from the decision as a whole from which document(s) the examining division had started when examining inventive step. The board held that the requirement in R. 111(2) EPC of a decision being reasoned is not met if the decision merely contains statements that at best give rise to speculation about what the deciding body might have intended to express.

In T. 3071/19 the examining division's decision had relied on a video which was no longer available at the time of the appeal decision. The board held that a decision open to appeal is not reasoned within the meaning of R. 111(2) EPC if it does not enable the board of appeal to review its correctness. A decision should therefore not rely on evidence accessible only at a web page which is not guaranteed to remain accessible and unchanged. Rather, it should be ensured that a person inspecting the file can reliably access the cited evidence, for example by using appropriate screenshots as evidence of what was shown in the video.

3.4.5 Special cases

a) References to communications

See in this chapter III.K.3.5. "Decisions according to the state of the file".

b) Reference to a board decision or case law

In T.1205/12 and T.1206/12, which are worded identically, the board held that a mere reference to jurisprudence of the boards of appeal did not, by itself, constitute or replace an argument in a first instance decision. If a deciding body, in a decision, wanted to rely on an argument put forward in a decision of the boards, be it part of its ratio decidendi or an obiter dictum, it was insufficient merely to refer to it or to cite it. The deciding body also had to make clear that it adopted the argument and explain why, in what respect and to what extent this argument applied to the case at hand.

In T.227/95 the contested decision contained no reasons on the merits of the case but merely stated: "for the reasons it is referred to the decision of the board of appeal dated 24.01.94" (meaning T.527/92). However, T.527/92 contained no such reasons, since the case was remitted to the opposition division for further prosecution. The requirements of R.68(2)EPC 1973 were not met.

c) Assessment of inventive step without assessing the prior art

In T.87/08 the board pointed out that Art.56 EPC required that the assessment of inventive step be made "having regard to the state of the art". Accordingly, a decision was not sufficiently reasoned if the chain of reasoning to justify the finding of lack of inventive step merely stated that a purported effect had not been achieved, i.e. this technical problem had not been solved, without reformulating the problem in a less ambitious way and without assessing the obviousness of the claimed solution to that reformulated problem in the light of the cited prior art.

In T.2375/10 the board found that since the requirement of inventive step under Art.56 EPC had to be assessed in the light of the prior art, the decision of the examining division to conclude that there was a lack of inventive step without referring to the prior art was insufficiently reasoned within the meaning of R.111(2)EPC. See also T.306/09.

d) Identical decision after remittal for further prosecution

In T.740/93 the case had been sent back to the department of first instance because of a procedural violation (incorrect composition of the opposition division). Because of the remittal with the order for further prosecution of the opposition, the first decision became nothing more than a communication and the first statement of grounds of appeal therefore had to be considered as a response to this communication. The new opposition division rendered a decision which was nearly identical to the first one. Although the decision under appeal contained a reasoning as to why the subject-matter of the patent in suit was considered to lack an inventive step and referred to points of dispute raised in the